

Voluntary Report – Voluntary - Public Distribution

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Report Name: India's FSSAI Notifies Amendments to the Food Safety and Standards - Labeling and Display - Regulations 2020

Country: India

Post: New Delhi

Report Category: Agriculture in the Economy, Agriculture in the News, Agricultural Situation, FAIRS Subject Report, SP1 - Expand International Marketing Opportunities, Sanitary/Phytosanitary/Food Safety, Oilseeds and Products, Policy and Program Announcements, SP2 - Prevent or Resolve Barriers to Trade that Hinder U.S. Food and Agricultural Exports

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Report Highlights:

On September 29, 2021, the Ministry of Health and Family Welfare/Food Safety and Standards Authority of India (FSSAI) issued Notification No. F. No. Std/SP-08/A-1.2021/N-01. The authority is amending the Food Safety and Standards (Labeling and Display) Regulations (2020), as it pertains to the clauses on labeling of pre-packaged foods. World Trade Organization (WTO) members are invited to comment on the proposed draft amendment; the timeline to provide comments is 60-days from the date of notification on the WTO website.

DISCLAIMER: The information contained in this report was retrieved from the Food Safety and Standards Authority of India's (FSSAI) website <http://www.fssai.gov.in>. The U.S. Embassy in New Delhi – Foreign Agricultural Service (FAS) Office of Agricultural Affairs (OAA), USDA and/or the U.S. government make no claim of accuracy or authenticity. The Government of India has not officially endorsed this report. Import approval for any product is subject to local rules and regulations as interpreted by Indian officials at the time of product entry. [Note: Use Google Chrome to access the links if they do not open in Internet Explorer].

GENERAL INFORMATION

On September 29, 2021, the Ministry of Health and Family Welfare/Food Safety and Standards Authority of India (FSSAI) issued Notification No. F. No. Std/SP-08/A-1.2021/N-01. The authority is amending the Food Safety and Standards (Labeling and Display) Regulations (2020) as it pertains to the labeling of pre-packaged foods (see, Appendix I). FAS New Delhi (Post) recommends that interested stakeholders thoroughly read the notification before providing comments. World Trade Organization (WTO) members are invited to comment on the notification; the timeline to provide comments is 60 days from the date of notification on the WTO website.

The full text of the proposed draft amendment is accessible on the FSSAI's website located at: https://www.fssai.gov.in/upload/uploadfiles/files/Draft_Notification_Labelling_29_09_2021.pdf

Comments should be sent to:

The Chief Executive Officer
Food Safety and Standards Authority of India
3rd Floor, Food and Drug Administration Bhawan, Kotla Road
New Delhi – 110002
Email: spstbt.enqpt@fssai.gov.in

Details of the Notification of Amendments

Publication Date on the FSSAI Website: September 29, 2021

Date of Implementation: Date of final publication in the Official Gazette of India

Final Date for Comments: 60-days from the date of notification on the WTO website

APPENDIX 1:DRAFT FOOD SAFETY AND STANDARDS (LABELING AND DISPLAY) AMENDMENT REGULATIONS (2021)

FOOD SAFETY AND STANDARDS AUTHORITY OF INDIA

NOTIFICATION

New Delhi, the 27th September, 2021

F. No. Std/SP-08/A-1.2021/N-01.—The following draft of certain regulations to further to amend the Food Safety and Standards (Labelling and Display) Regulations, 2020, which the Food Safety and Standards Authority of India with previous approval of Central Government, in exercise of the powers conferred by clause (k) of sub section (2) of section 92 read with section 23 of Food Safety and Standards Act, 2006 (34 of 2006) hereby published as required by the said sub-section (2), for the information of all persons likely to be affected thereby, and notice is hereby given that the said draft regulation shall be taken into consideration after the expiry of the period of sixty days from the date on which the copies of the official Gazette in which this notification is published are made available to the public;

Objections or suggestions, if any, may be addressed to the Chief Executive Officer, Food Safety and Standards Authority of India, FDA Bhawan, Kotla Road, New Delhi-110002 or sent on email at regulation@fssai.gov.in;

Objections or suggestions which may be received with respect to the said draft regulations before the expiry of period so specified shall be considered by the Food Safety and Standards authority of India.

Draft Regulations

1. (1) These regulations may be called the Food Safety and Standards (Labelling and Display) Amendment Regulations, 2021.

2. In the Food Safety and Standards (Labelling and Display) Regulations, 2020 (herein after refer as said regulations),-

(1) In regulation 5,

(I) In sub-regulation 5(3),

(i) in clause (b)(ii)(C),

(a) The second proviso starting with 'provided that' and ending with "more than 0.5%" shall be substituted with:

"Provided that saturated fat and trans fat to be given only if total fat content is more than 0.5% in final food."

(b) after the second proviso, the following proviso shall be inserted:

"Provided further that cholesterol content to be given only for products containing fats of animal origin and where total fat content is more than 0.5%."

(ii) for clause (c)(xi), the following shall be substituted, namely:

"(xi)Chewing gum and bubble gum";

(II) In sub-regulation 5(7), in clause (e), the words 'Schedule II' shall be substituted with 'Schedule I'.

(III) In sub-regulation 5 (10), under clause (b) (i) the following shall be inserted, namely:

"Provided that for products with shelf life of more than 3 months, the "DD/MM/YY" format may also be used.

(IV) In sub-regulation 5(14),

(i) In clause (i), after the words “name of the cereal);”, the following shall be inserted, namely:

“except:

- (a) wheat based glucose syrups including dextrose*
- (b) wheat based maltodextrins*;
- (c) glucose syrups based on barley;
- (d) cereals used for making alcoholic distillates including ethyl alcohol of agricultural origin;

*And the products thereof, provided these ingredients have been assessed as safe and gluten shall not be more than 20 mg/kg .”

(ii) the second proviso starting with “provided further” and ending with “ingredients” shall be substituted with following: -

“Provided further that this declaration is not required in case of oils and distilled alcoholic beverages derived from these ingredients and where the product itself is a food allergen.”

(2) In sub-regulation 6 (3),

(I) For Table I the following shall be substituted, namely: -

Table I

Area of Principal Display Panel	Minimum Height of numeral and letter in mm	
	Normal case	When Blown, formed Moulded, or perforated on container
Upto 200 cm ²	1	2
Above 200 cm ² upto 500 cm ²	2	4
Above 500 cm ² upto 2500 cm ²	3	5
Above 2500 cm ²	6	8

(II) After first proviso starting with words “Provided that” and ending with “made there under”, the following proviso shall be inserted:

“Provided further that the size of numeral and/or letter required for all declarations under these regulations on the crown/closure of returnable glass bottle shall not be less than 1 mm.”

(3) In regulation 7, under sub-regulation (1), the following proviso shall be inserted, namely: -

“Provided that in case of food package having surface area upto 30cm² containing caloric/ non caloric sweetener or mixture thereof, the size of numerals & letters for the declarations/specific requirements specified in schedule -II shall not be less than 1mm based on the letter l.”;

(4) In sub-regulation 8, after clause (1) the following shall be inserted, namely:

“(1) (a) The 'date of manufacture' may not be required to be mentioned on the package having surface area of less than 30 square centimeters but this information shall be given on the multi-unit packages.”

(5) In Schedule II,

(I) for provision 1(1)(3), in proviso starting with “provided if” and ending with “ingredients”, the word ‘(in ppm)’ shall be substituted with “(in mg/100ml or mg/100gm)”

(II) under provision 1(6),

(i) the word “OR” shall be omitted

(ii) the word “OR” shall be inserted after the words “CRUSH THE BOTTLE AFTER USE” and before the words “DISPOSE THE BOTTLE RESPONSIBLY”

ARUN SINGHAL, Chief Executive Officer

[ADVT.-III/4/Exty./281/2021-22]

Attachments:

No Attachments.